

LEGAL AGREEMENT - SAFE

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ARTICLE 8: CONFIDENTIALITY AND INTELLECTUAL PROPERTY

8.1 Each party acknowledges that, in the course of performing this Agreement, the other party may disclose to it confidential information, which may include, without limitation, trade secrets, business plans, technical data, and other proprietary information.

8.2 The receiving party shall keep all confidential information confidential, shall use it only for the purposes of performing this Agreement, and shall not disclose it to any third party without the prior written consent of the disclosing party.

8.3 The receiving party shall take all reasonable measures to protect the confidentiality of the confidential information, which shall be at least as protective as the measures it takes to protect its own confidential information.

8.4 The obligations of this Section 8 shall not apply to confidential information that is (i) publicly known at the time of disclosure, (ii) subsequently becomes publicly known through no fault of the receiving party, (iii) is required to be disclosed by law or by a court or administrative order, or (iv) is independently developed by the receiving party without use of or reference to the disclosing party's confidential information.

8.5 The receiving party shall promptly notify the disclosing party in writing of any disclosure of confidential information, any misuse of confidential information, or any unauthorized access to confidential information, and shall cooperate with the disclosing party to mitigate any harm resulting from such disclosure.